

Court No. - 39

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. And 4 Others

Counsel for Petitioner :- Puneet Bhadauria

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Neeraj Tiwari,J.

A fresh electricity connection was provided to the petitioner, who is a tenant of the premises by the respondents. The dispute is about the arrears of bill of the earlier tenant and it appears that the landlord has also submitted an application that the fresh connection was provided to the petitioner without his consent. The petitioner has made payment of the bills raised after the fresh connection was provided but his connection has been disconnected on account of non payment the arrears of the erstwhile tenant.

The matter requires consideration.

Sri Shravan Kumar Tripathi has put in appearance on behalf of the respondents. He prays for and is granted three weeks' time to file counter affidavit. Rejoinder affidavit, if any, may be filed within one week.

List this petition for admission on 10 May 2018.

The electricity connection of the petitioner shall be restored forthwith if the petitioner deposits an amount of Rs. 5,000/-.

Order Date :- 2.4.2018

Arvind

(Dilip Gupta, J.)

(Neeraj Tiwari, J.)

Court No. - 35

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd.
And 4 Others

Counsel for Petitioner :- Puneet Bhadauria

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Case called out in revised list.

No one appears to press this matter.

The writ petition is dismissed for non-prosecution.

Interim order, if any, is discharged.

Order Date :- 10.5.2018

Israr

Court No. - 32

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd.
And 4 Others

Counsel for Petitioner :- Puneet Bhadauria

Counsel for Respondent :- Baleshwar Chaturvedi, Shrawan Kumar
Tripathi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Rajiv Gupta, J.

As prayed, put up on 16.7.2018.

Order Date :- 13.7.2018

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Court No. - 32

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. And 4 Others

Counsel for Petitioner :- Puneet Bhadauria

Counsel for Respondent :- Baleshwar Chaturvedi, Shrawan Kumar Tripathi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Rajiv Gupta, J.

This restoration application has been filed by the petitioner with the prayer to recall the order dated 10.05.2018.

Cause shown in the restoration application is sufficient to recall the order dated 10.05.2018. The restoration application No. 02 of 2018 is allowed.

The writ petition is restored to its original number.

List this matter in due course.

Order Date :- 16.7.2018

Nadim Alam

Court No. - 3

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. And 4 Others

Counsel for Petitioner :- Puneet Bhadauria, Surendra Kumar, Sushant Misra

Counsel for Respondent :- Baleshwar Chaturvedi, Ram Om Vikram Singh Chauhan, Shrawan Kumar Tripathi

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

On the request made on behalf of Shri Sushant Mishra, learned counsel for the petitioner, this case is passed over for the day.

List the matter peremptorily in the next cause list at the top of the list.

Order Date :- 1.4.2024

K.K.Tiwari

Court No. - 3

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. And 4 Others

Counsel for Petitioner :- Puneet Bhadauria, Surendra Kumar, Sushant Misra

Counsel for Respondent :- Baleshwar Chaturvedi, Ram Om Vikram Singh Chauhan, Shrawan Kumar Tripathi

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

1. Supplementary affidavit filed today in Court by counsel for the petitioner is taken on record.
2. Counsel appearing for the respondents had been granted time on 2.4.2018 to file counter affidavit, which has not been filed till date.
3. Counsel for the respondents to file counter affidavit within ten days from today positively, both to the writ petition as well as to the supplementary affidavit that has been filed today in Court.
4. List after ten days.

Order Date :- 8.4.2024

SK

Court No. - 3

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. And 4 Others

Counsel for Petitioner :- Puneet Bhadauria, Surendra Kumar, Sushant Misra

Counsel for Respondent :- Baleshwar Chaturvedi, Ram Om Vikram Singh Chauhan, Shrawan Kumar Tripathi

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

Counter affidavit filed on behalf of the respondent nos.1 to 5 is taken on record.

Learned counsel for the petitioner prays for and is granted ten days' time to file rejoinder affidavit.

List thereafter.

Order Date :- 19.4.2024

m.a.

Court No. - 3

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. And 4 Others

Counsel for Petitioner :- Puneet Bhadauria, Surendra Kumar, Sushant Misra

Counsel for Respondent :- Baleshwar Chaturvedi, Ram Om Vikram Singh Chauhan, Shrawan Kumar Tripathi

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

1. Counsel for the petitioner prays for and is granted one week and no more time to file rejoinder-affidavit.

2. List thereafter.

Order Date :- 2.7.2024

Irshad

Court No. - 3

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. And 4 Others

Counsel for Petitioner :- Puneet Bhadauria, Surendra Kumar, Sushant Misra

Counsel for Respondent :- Baleshwar Chaturvedi, Ram Om Vikram Singh Chauhan, Shrawan Kumar Tripathi

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

The case is passed over on the illness slip of Sri Shrawan Kumar Tripathi counsel for the respondent.

Order Date :- 30.8.2024

Himanshu

Court No. - 40

Case :- WRIT - C No. - 11952 of 2018

Petitioner :- Smt. Laxmi Chaurasiya

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. And 4 Others

Counsel for Petitioner :- Puneet Bhadauria, Surendra Kumar, Sushant Misra

Counsel for Respondent :- Baleshwar Chaturvedi, Ram Om Vikram Singh Chauhan, Shrawan Kumar Tripathi

Hon'ble Ashwani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

1. This writ petition arises out of a dispute relating to disconnection of petitioner's electricity connection in respect of the shop in question. The order passed by the respondent on 11th March, 2018 is assailed.

2. Petitioner is the tenant of the shop in question. The landlord had earlier availed of an electricity connection which got disconnected due to non-payment of dues. The petitioner applied for a fresh connection in his own name. This connection was granted. Subsequently the petitioner's connection was discontinued on the premise that earlier default in respect of the same premises by the landlord was not cleared and that the consent of the landlord was also missing. The petitioner at that stage approached this Court by filing the present writ petition wherein following orders were passed on 2.4.2018:-

"A fresh electricity connection was provided to the petitioner, who is a tenant of the premises by the respondents. The dispute is about the arrears of bill of the earlier tenant and it appears that the landlord has also submitted an application that the fresh connection was provided to the petitioner without his consent. The petitioner has made payment of the bills raised after the fresh connection was provided but his connection has been disconnected on account of non payment the arrears of the erstwhile tenant.

The matter requires consideration.

Sri Shravan Kumar Tripathi has put in appearance on behalf of the respondents. He prays for and is granted three weeks' time to file counter affidavit. Rejoinder affidavit, if any, may be filed within one week.

List this petition for admission on 10 May 2018.

The electricity connection of the petitioner shall be restored forthwith if the petitioner deposits an amount of Rs. 5,000/-."

3. The petitioner's electricity connection was restored by the interim orders passed on 2.4.2018.
4. A counter affidavit has been filed stating that after fresh connection was allowed in favour of the petitioner, the petitioner has also defaulted in deposit of electrical dues as a result of which notices for disconnection was issued to the petitioner. The connection was temporarily disconnected vide annexure 3 to the counter affidavit. On 4.7.2023 the petitioner's electrical connection has been permanently disconnected.
5. A rejoinder affidavit has been filed stating that the petitioner has deposited the dues and the disconnection on account of non-payment of electrical dues is arbitrary.
6. We have heard Sri Puneet Bhadauria for the petitioner and Sri Shrawan Kumar Tripathi for the respondent.
7. There is an apparent dispute with regard to liability of petitioner to pay electrical dues post 2.4.2018. The respondents state that only part of the dues have been deposited by the petitioner. Petitioner, however, states that he has deposited entire amount and there was in-fact no default on his part.
8. Without entering into the factual dispute raised in that regard, we deem it appropriate to relegate the petitioner to the remedy available under Clause 6.5 of the U.P. Electricity Supply Code 2005 for resolution of billing dispute.
9. We permit the petitioner to approach the concerned authority alongwith a copy of this order, who shall furnish details in respect of the petitioner's liability within a period of one week. The petitioner shall be at liberty to submit his objection to the demand, so indicated, within a period of two weeks. The authority concerned shall examine petitioner's grievance by passing appropriate reasoned order within a period of six weeks, thereafter.
10. With the above observations and directions, this writ petition stands disposed of.

Order Date :- 1.7.2025
Ranjeet Sahu